

일련번호	3	감사자	관리4급 ○○○		공개(○) 비공개()
신분상 조치인원	-	재정상 조치방법	-	재정상 조치금액	-
수감부서 (처리할 부서)	서울동부지사	처분요구일자	2018.8.14.	회신기일	2018.10.13.

통 보

제 목 하도급대금지급보증 보증해지 처리 지연

관 련 부 서 서울동부지사

내 용

1. 업무개요

서울동부지사는 「하도급거래공정화에 관한 법률」이 정한 하도급거래(건설위탁)의 시공자가 수급사업자에게 지급하여야 할 하도급대금의 지급을 책임지는 하도급대금지급보증을 취급하고 있다.

2. 관계법령 등(판단기준)

「보증규정시행세칙」 제134조에 따르면 하도급대금지급보증책임소멸확인원 또는 하도급대금지급 사실을 확인할 수 있는 서류를 받은 경우, 어음 또는 어음대체결제 수단을 이용하여 지급시 어음의 만기일 또는 상환기일에 결제된 사실을 확인한 경우, 보증기간 종료 후 보증이행청구가 없는 경우에 보증금액의 일부 또는 전부를 해지하도록 되어 있다.

따라서, 하도급대금지급보증 보증기간이 종료된 경우에는 보증이행청구 여부를 확인하여 이행청구가 없는 경우 보증금액의 일부 또는 전부를 해지하여야 한다.

3. 감사결과 확인된 문제

그런데 서울동부지사는 (주)○○의 ○○제1주택 재개발정비사업조합 사업장 등에 발급된 하도급대금지급보증 155건이 [별첨]과 같이 감사일 현재 보증기간 종료일로부터 15일 이상 경과하였음에도 불구하고 이행청구 여부를 확인하여 보증을 해지하는 등의 조치를 하지 않고 있다.

관계부서 의견 서울동부지사는 감사결과에 별다른 이의를 제기하지 않으면서 즉시 조치하겠다는 의견을 제시하였다.

조치할 사항 서울동부지사장은 보증기간 종료일이 경과한 하도급대금지급보증과 관련하여 이행청구 여부를 확인하여 보증을 해지하는 등 조치하시기 바랍니다.(통보)

[별첨] 서울동부지사 보증기한 경과 하도급대금지급보증 내역

고객명	보증서번호	보증잔액(원)	사업장명	보증기한
	01282017-802-0007700	7,983,193		2017-02-01 ~ 2018-03-30
	01282016-802-0008700	9,678,933		2016-03-14 ~ 2018-04-29
	01282016-802-0021600	60,688,988		2016-07-06 ~ 2018-03-30
	01282016-802-0027800	27,338,473		2016-09-26 ~ 2018-06-29
	01282015-802-0010600	10,810,762		2015-06-23 ~ 2018-01-29
	01282016-802-0029000	346,210,348		2016-09-27 ~ 2018-04-29
	01282016-802-0013800	748,714,064		2016-04-21 ~ 2018-03-01
	01282016-802-0034900	7,535,433		2016-12-09 ~ 2018-06-29
	01282017-802-0027100	790,370,370		2017-09-20 ~ 2018-04-29
	01282016-802-0017200	473,689,520		2016-05-11 ~ 2018-04-29
	01282017-802-0010300	4,937,118		2017-03-22 ~ 2018-03-30
	01282016-802-0035700	197,167,177		2016-12-01 ~ 2018-03-30
	01282017-802-0008300	886,645		2016-12-26 ~ 2018-03-30
	01282017-802-0027700	7,156,547		2017-08-31 ~ 2018-03-30
	01282017-802-0005600	612,297,587		2017-02-27 ~ 2018-04-29
	01282017-802-0030900	81,637,306		2016-01-19 ~ 2018-04-29
	01282016-802-0023200	288,755,146		2016-08-03 ~ 2018-04-29
	01282017-802-0025800	54,623,100		2017-08-31 ~ 2018-03-30
	01282017-802-0006400	261,092,360		2017-02-28 ~ 2018-03-30
	01282016-802-0019000	235,538,243		2016-05-25 ~ 2018-06-29
	01282016-802-0025700	503,929,387		2016-08-03 ~ 2018-04-29
	01282017-802-0008600	117,120,291		2017-02-28 ~ 2018-03-30
	01282017-802-0008700	172,968,750		2017-03-20 ~ 2018-01-29
	01282016-802-0012300	89,222,222		2016-04-05 ~ 2018-06-29
	01282015-802-0031500	323,629,343		2015-11-16 ~ 2018-03-01
	01282016-802-0007700	12,753,226		2016-03-15 ~ 2018-04-29
	01282015-802-0029300	2,725,974		2015-10-21 ~ 2018-04-29
	01282015-802-0023400	28,085,911		2015-09-11 ~ 2018-01-29
	01282017-802-0002200	11,462,253		2016-12-29 ~ 2018-04-29
	01282016-802-0021300	69,703,333		2016-07-04 ~ 2018-06-29
	01282017-802-0008200	1,120,957		2016-12-14 ~ 2018-03-30
	01282017-802-0008000	71,659,228		2017-02-27 ~ 2018-03-30
	01282016-802-0010900	120,874,894		2016-04-05 ~ 2018-04-28
	01282016-802-0007800	102,168,503		2016-03-16 ~ 2018-04-29
	01282016-802-0031200	201,290,322		2016-10-26 ~ 2018-04-29
	01282016-802-0033900	15,200,777		2016-12-05 ~ 2018-03-30
	01282016-802-0035300	685,622,459		2016-12-23 ~ 2018-04-29
	01282016-802-0032700	836,538,461		2016-11-11 ~ 2018-05-30
	01282016-802-0024200	79,449,375		2016-08-11 ~ 2018-04-29
	01282016-802-0018400	639,287,115		2016-06-01 ~ 2018-04-29
	01282016-802-0021500	113,293,051		2016-07-08 ~ 2018-06-29
	01282016-802-0029500	13,279,578		2016-09-26 ~ 2018-03-30
	01282017-802-0006200	78,719,520		2017-02-28 ~ 2018-03-30
	01282016-802-0004900	941,518,492		2016-01-19 ~ 2018-04-29

고객명	보증서번호	보증잔액(원)	사업장명	보증기한
	01282016-802-0017100	214,563,104		2016-05-24 ~ 2018-04-29
	01282017-802-0007600	22,455,773		2017-03-08 ~ 2018-03-30
	01282016-802-0022900	567,149,737		2016-07-25 ~ 2018-04-29
	01282017-802-0035900	36,525,240		2017-11-21 ~ 2018-04-01
	01282017-802-0026700	1,657,487,241		2017-09-22 ~ 2018-05-30
	01282016-802-0013700	29,440,502		2016-04-01 ~ 2018-02-26
	01282016-802-0007500	105,426,670		2016-03-15 ~ 2018-04-29
	01282016-802-0025900	30,598,179		2016-08-09 ~ 2018-04-29
	01282016-802-0017500	381,005,739		2016-05-26 ~ 2018-04-29
	01282017-802-0010400	435,919,341		2017-03-23 ~ 2018-03-30
	01282017-802-0007900	68,894,000		2017-03-03 ~ 2018-03-30
	01282016-802-0035400	1,185,439,708		2016-12-08 ~ 2018-04-29
	01282016-802-0035800	63,303,623		2016-12-14 ~ 2018-03-30
	01282015-802-0006000	844,898,339		2015-05-10 ~ 2018-04-29
	01282017-802-0025700	20,124,300		2017-08-31 ~ 2018-03-30
	01282016-802-0028900	50,710,026		2016-09-26 ~ 2018-04-29
	01282016-802-0024400	513,227,621		2016-08-03 ~ 2018-04-29
	01282017-802-0003700	6,053,921		2017-02-01 ~ 2018-03-30
	01282017-802-0036000	12,477,066		2017-12-01 ~ 2018-03-30
	01282016-802-0003500	157,896,887		2015-12-18 ~ 2018-04-29
	01282016-802-0015900	396,359,028		2016-05-10 ~ 2018-04-29
	01282016-802-0002900	160,721,790		2015-12-17 ~ 2018-04-29
	01282016-802-0013000	152,851,149		2016-04-11 ~ 2018-04-29
	01282016-802-0010600	109,330,818		2016-04-04 ~ 2018-04-29
	01282017-802-0001000	195,822,965		2016-12-27 ~ 2018-04-29
	01282016-802-0005700	318,562,500		2015-12-28 ~ 2018-01-29
	01282016-802-0019200	80,258,127		2016-06-14 ~ 2018-04-29
	01282017-802-0002100	658,025,504		2016-12-26 ~ 2018-04-29
	01282016-802-0015500	394,006,722		2016-05-09 ~ 2018-04-29
	01282015-802-0005200	10,461,112		2015-05-06 ~ 2018-04-29
	01282016-802-0017300	327,238,040		2016-05-25 ~ 2018-04-29
	01282017-802-0026000	176,088,669		2017-08-31 ~ 2018-03-30
	01282016-802-0032300	321,959,291		2016-11-07 ~ 2018-04-29
	01282017-802-0006000	225,320,287		2017-02-28 ~ 2018-03-30
	01282016-802-0028500	316,826,694		2016-09-27 ~ 2018-04-29
	01282017-802-0030500	170,520,000		2017-10-10 ~ 2018-04-29
	01282016-802-0020000	97,400,640		2016-06-14 ~ 2018-04-29
	01282016-802-0001900	1,272,433,172		2015-12-24 ~ 2018-04-29
	01282016-802-0015600	296,350,465		2016-04-25 ~ 2018-04-29
	01282017-802-0017000	32,491,036		2017-06-22 ~ 2018-04-29
	01282016-802-0001600	747,592,631		2015-12-24 ~ 2018-04-29
	01282017-802-0025900	97,213,871		2017-08-31 ~ 2018-03-30
	01282016-802-0003700	193,687,941		2016-01-21 ~ 2018-01-29
	01282017-802-0029000	177,480,000		2017-10-10 ~ 2018-04-29
	01282013-802-0008300	79,742,904		2013-04-20 ~ 2018-01-16
	01282017-802-0002400	60,051,767		2017-01-19 ~ 2018-03-30
	01282016-802-0033800	10,898,670		2016-12-05 ~ 2018-03-30

고객명	보증서번호	보증잔액(원)	사업장명	보증기한
	01282017-802-0001100	62,702,440		2016-12-25 ~ 2018-03-30
	01282017-802-0009000	95,401		2017-03-29 ~ 2018-05-29
	01282017-802-0005500	579,340,056		2017-02-27 ~ 2018-04-29
	01282017-802-0015300	4,273,007		2017-04-14 ~ 2018-04-29
	01282016-802-0030300	56,556,784		2016-10-18 ~ 2018-04-29
	01282016-802-0027700	78,571,428		2016-09-20 ~ 2018-06-29
	01282016-802-0008600	407,534,058		2016-03-14 ~ 2018-04-29
	01282017-802-0027800	3,801,057		2017-08-31 ~ 2018-03-30
	01282017-802-0006300	89,215,105		2017-02-28 ~ 2018-03-30
	01282016-802-0019300	16,168,506		2016-06-14 ~ 2018-04-29
	01282016-802-0024500	525,164,598		2016-08-03 ~ 2018-04-29
	01282017-802-0024900	535,391,310		2017-08-31 ~ 2018-04-29
	01282017-802-0035000	681,648,322		2017-11-15 ~ 2018-05-30
	01282016-802-0031400	50,934,782		2016-10-26 ~ 2018-06-29
	01282016-802-0023500	32,846,034		2016-07-27 ~ 2018-06-29
	01282016-802-0012200	6,523,388		2016-05-04 ~ 2018-06-29
	01282017-802-0039300	81,369,000		2017-11-30 ~ 2018-04-29
	01282015-802-0029400	4,100,781		2015-10-22 ~ 2018-04-29
	01282017-802-0029900	44,021,906		2017-10-18 ~ 2018-03-30
	01282017-802-0015400	2,508,750		2017-05-30 ~ 2018-01-29
	01282016-802-0003900	28,269,901		2015-12-23 ~ 2018-01-29
	01282016-802-0029100	335,437,673		2016-09-27 ~ 2018-04-29
	01282016-802-0031000	38,969,937		2016-10-14 ~ 2018-04-29
	01282016-802-0021800	408,154,816		2016-07-11 ~ 2018-03-30
	01282016-802-0003000	172,417,427		2015-12-21 ~ 2018-04-29
	01282016-802-0023300	316,711,211		2016-08-03 ~ 2018-04-29
	01282016-802-0033500	761,279,946		2016-12-05 ~ 2018-04-29
	01282017-802-0006900	28,831,139		2017-02-21 ~ 2018-03-30
	01282016-802-0012600	732,919,121		2016-03-25 ~ 2018-04-29
	01282016-802-0010700	285,759,345		2016-03-28 ~ 2018-04-29
	01282016-802-0014000	8,796,514		2016-05-18 ~ 2018-05-30
	01282017-802-0010000	272,527,472		2017-04-03 ~ 2018-03-01
	01282017-802-0029200	190,230,000		2017-10-10 ~ 2018-04-29
	01282016-802-0017600	365,092,595		2016-05-24 ~ 2018-04-29
	01282016-802-0005000	941,875,529		2016-01-18 ~ 2018-04-29
	01282017-802-0019000	15,822,289		2017-06-08 ~ 2018-03-30
	01282016-802-0015100	989,370,078		2016-03-30 ~ 2018-06-29
	01282017-802-0039500	28,751,626		2017-11-30 ~ 2018-04-29
	01282017-802-0038500	43,710,536		2017-11-30 ~ 2018-04-29
	01282016-802-0018300	215,387,891		2016-05-23 ~ 2018-04-29
	01282016-802-0017400	427,835,193		2016-05-02 ~ 2018-04-29
	01282015-802-0025500	5,661,736		2015-09-17 ~ 2018-01-29
	01282017-802-0010800	13,315,625		2016-07-11 ~ 2018-03-30
	01282015-802-0006300	5,820,222		2015-05-06 ~ 2018-04-01
	01282016-802-0032200	361,839,879		2016-11-07 ~ 2018-04-29
	01282016-802-0021900	268,324,000		2016-07-20 ~ 2018-03-30
	01282017-802-0007000	7,599,153		2016-07-06 ~ 2018-03-30

고객명	보증서번호	보증잔액(원)	사업장명	보증기한
	01282017-802-0002300	16,591,025		2017-01-02 ~ 2018-03-30
	01282016-802-0012900	17,588,815		2016-03-22 ~ 2018-04-21
	01282016-802-0001700	741,489,834		2015-12-24 ~ 2018-04-29
	01282016-802-0012100	2,714,453		2016-05-04 ~ 2018-06-29
	01282015-802-0018700	2,743,430		2015-08-11 ~ 2018-01-16
	01282016-802-0018500	19,175,965		2016-06-22 ~ 2018-06-29
	01282017-802-0004300	91,762,918		2017-01-19 ~ 2018-04-29
	01282016-802-0033700	353,960,654		2016-12-01 ~ 2018-03-30
	01282018-802-0000500	263,571,428		2017-12-12 ~ 2018-06-29
	01282017-802-0025000	133,450,133		2017-08-31 ~ 2018-06-29
	01282017-802-0007800	7,659,248		2017-03-01 ~ 2018-03-30
	01282017-802-0006100	69,716,325		2017-02-28 ~ 2018-03-30
	01282017-802-0030400	182,770,000		2017-10-10 ~ 2018-04-29
	01282016-802-0035900	46,788,997		2016-12-26 ~ 2018-03-30
	01282016-802-0016000	267,887,887		2016-04-26 ~ 2018-04-29
	01282016-802-0001800	1,400,591,909		2015-12-24 ~ 2018-04-29
	01282016-802-0008900	1,711,067,412		2016-03-16 ~ 2018-04-29
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